



Fédération Internationale des Ingénieurs-Conseils
International Federation of Consulting Engineers
Internationale Vereinigung Beratender Ingenieure
Federación Internacional de Ingenieros Consultores

**Client/
Consultant**

Model Services Agreement

FORM OF AGREEMENT

PARTICULAR CONDITIONS
APPENDICES 1, 2, 3, 4 AND 5

ISBN 978-2-88432-078-8

FIFTH EDITION 2017

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Form of Agreement

Between	[Name of Client]	South Atlantic LNG West Africa Limited
Of	[Address of Client]	No 2/3 Onikoyi Lane, Park View Estate, Ikoyi, Lagos, Nigeria (hereinafter called "SA LNG" or "the Client")
And	[Name of Consultant]	ILF Engineers Nigeria Limited
Of	[Address of Consultant]	TCF Tower, 33 Adeola Hopewell Street, Victoria Island, Lagos, Nigeria (hereinafter called "ILF" or "the Consultant")

WHEREAS:

The Client desires that certain Services should be performed by the Consultant, namely the provision of Technical Advisory services (TA) for the EPCI for the 5MMSCFD Mini-LNG Plant in Delta State ("**Project**") and has accepted an offer/proposal by the Consultant for the performance of such Services.

THE CLIENT AND THE CONSULTANT AGREE AS FOLLOWS:

1. In this Agreement words and expressions shall have the same meanings as are respectively assigned to them in Clause 1.1 of the General Conditions of the Client/Consultant Model Services Agreement.
2. The following documents shall be deemed to form and be read and construed as part of this Agreement and shall be given the order of precedence as below:
 - a) This Form of Agreement;
 - b) The Client/Consultant Model Services Agreement;
 - i. Particular Conditions;
 - ii. General Conditions;
 - c) Consultant Proposal 20877-ILF-NGR-OD-00001_Rev0 dated 6th February 2026 incorporated under the Agreement under Sub-Clause 1.1.1;
 - d) Appendices; and
 - e) Any letter of acceptance by the Client incorporated into the Agreement under Sub-Clause 1.1.1.
3. In consideration of the payments to be made by the Client to the Consultant under the Agreement, the Consultant hereby agrees with the Client to perform the Services in conformity with the provisions of this Agreement.
4. The Client hereby agrees to pay the Consultant in consideration of the performance of the Services such amounts as may become payable under the provisions of this Agreement at the times and in the manner prescribed by this Agreement.

The parties have executed this Agreement as below:

AUTHORISED SIGNATURE(S) OF CLIENT:

AUTHORISED SIGNATURE(S) OF
CONSULTANT:

**SOUTH ATLANTIC LNG WEST AFRICA
LIMITED**

ILF ENGINEERS NIGERIA LIMITED

Name: Tunde Adesina

Name: ABIODUN OSHODI

Designation: Managing Director

Designation: Managing Director

Signature:

Signature:

Date:

Date:

WITNESS

Name: Ademola Arowolo

Name: SHEHU JIBRIL

Designation: Project Coordination Manager

Designation: Commercial Director

Signature:

Signature:

Date:

Date:

Particular Conditions

Part A. References from Clauses in the General Conditions

1.1 Definitions

1.1.4	Client's Representative	Fasuba Akintunde
1.1.5	Commencement Date	Per 4.2.1
1.1.8	Consultant's Representative	Seyi Obe
1.1.9	Country	Nigeria
1.1.22	Project	"Technical Advisory services (TA) for the EPCI for the 5MMSCFD Mini-LNG Plant in Delta state
1.1.24	Time for Completion	Shall be sixteen (16) months from Commencement Date

1.3 Notices and other Communications

1.3.1 (c)	Communication	Electronic Communication via e-mail
1.3.1 (d)	Address for communications	
	Client's address:	Plot 5, Block X, 2 nd Street, Osborne Foreshore Estate, Phase 1, Ikoyi, Lagos, Nigeria.
	Email: (only when e-mail is accepted as a valid system for electronic communications)	Email: fasuba.akintunde@southatlanticlng.com Email cc: tunde.adesina@southatlanticlng.com , ademola.arowolo@southatlanticlng.com ,
	Consultant's address:	TCF Tower, 33 Adeola Hopewell Street, Victoria Island, Lagos, Nigeria
	Email: (only when e-mail is accepted as a valid system for electronic communications)	Email: Seyi.Obe@ilf.com , Email cc: Abayomi.nelson@ilf.com Oluwole.Sojinrin@ilf.com

1.4 Law and Language

1.4.1	Law governing Agreement	Laws of the Federal Republic of Nigeria
1.4.2	Ruling language of Agreement	English
1.4.3	Language for communications	English

1.8 Confidentiality

1.8.3 Period for expiry of confidentiality

One year after the completion of Services or termination of the agreement (whichever comes earlier)

2.1 Information

2.1.1 Information

Clause 2.1.1 is amended as follows: In order not to delay the Consultant in the performance of the Services, the Client shall have available by the commencement date and with due regard to the Programme, provide to the Consultant, free of cost, all information, and any further information reasonably requested by the Consultant. Any additional document requested by Consultant shall be provided by Client within 24 hours of the request.

2.2.1 Decisions

Clause 2.2.1 is amended as follows: On all matters properly referred to the Client in writing by the Consultant, the Client shall give its decision, approval, consent, instruction or Variation, as the case may be, in writing within a reasonable time and with regard to the Programme so as not to delay the Services. Client shall give its decision, approval, consent, comments, instruction as the case may be within 3 calendar days so as not to delay the Services.

4.2 Commencement and Completion of Services

4.2.1

Clause 4.2.1 is amended as follows: The Consultant shall commence the performance of the Services after the receipt of a Notice to Proceed from Owner.

4.3	Programme	
4.3.1		Clause 4.3.1 is amended as follows: The Programme shall be as stated in Consultant's Proposal contained in 20877-ILF-NGR-OD-00001_Rev0 dated 6 th February 2026.
4.6	Rate of progress of Services	
4.6.3		Clause 4.6.3 is amended as follows: Notwithstanding any other provision of this Clause 4.6, the obligations of either Party to make payments to the other Party in respect of any payment which have become due and owing under the Agreement shall not be excused by an Exceptional Event.
7.2	Time for Payment	
7.2.1		Clause 7.2.1 is amended as follows: Amounts due to the Consultant shall be paid within 10 days of the date of issue of the Consultant's invoice.
8	Liabilities	
8.2	Duration of Liability	
8.2.1		Period of Liability: Three (3) months after the acceptance of the Monthly Report No.16
8.3	Limit of Liability	
8.3.1		Limit of Liability : Maximum liability for the Consultant shall be capped at 30% of the Contract Price.
9	Insurance	
9.1.1	Insurances to be taken out by Consultant Professional Indemnity Insurance	Max 1 million USD in respect of property damage or financial losses.
10	Disputes and Arbitration	
10.1	Amicable Dispute Resolution	Clause 10 is hereby deleted and replaced as follows: the Parties agree that in case of any dispute, the senior representatives of the Parties with authority to settle the dispute shall meet in order to attempt to resolve the dispute. Where Parties fail to reach amicable settlement within withing 10 business days, any disputes shall be settled by arbitration according to Clause 10.2 [Arbitration].

10.2 Arbitration

Any dispute which cannot be settled in accordance with Clause 10.1 above within a period of ten (10) business days shall be settled before a Sole Arbitrator to be appointed by the mutual agreement of the Parties in accordance with the Lagos State Arbitration Law 2009, and the award rendered by the arbitrator may be entered in any court having jurisdiction. A dispute shall be deemed to have arisen when any Party notifies the other Party in writing to that effect. In the event that the Parties are unable to agree on a sole arbitrator within fourteen (14) calendar days after the declaration of a dispute, such sole arbitrator shall be appointed by the Chairman, Chartered Institute of Arbitrators UK (Nigeria Branch). The place of arbitration shall be Lagos, Nigeria.

An award of the Arbitral tribunal shall be final and binding on the Parties. Each Party shall bear its cost of arbitration. Notwithstanding any reference to arbitration herein;

The Client shall pay the Consultant any undisputed monies due to the Consultant.

10.3 Language of arbitration

The language of Arbitration shall be English.

Part B Additional or Amended Clauses

The parties are to include in this section any variations, omissions and/or additions to the General Conditions.

11 Additional Clauses

11.1 Acceptance of the Services

The Services shall be considered to be accepted by the Client in whole or in part, as the case may be, if they were taken over by the Client and the Client did not officially reject them including reasonable rectification measures within 5 days upon its submission.

11.2 Approvals

Any comment on, or approval to the Consultant's submissions of the milestone deliverables to Client shall be in writing, and completed within 5 calendar days. Extended reviews which have impact on the Time for Completion shall entitle Consultant to a Variation. The comments shall be in one single set of comments per set of documents submitted for such comment or approval. The Client's comments are assumed to be internally coordinated within the Client's organization and any third parties for which the Client is responsible prior to submission to the Consultant. Subsequent alterations or partial, not aligned comments are not considered in the present scope of services and may either result in delays not attributable to Consultant and/or additional services.

APPENDICES

These Appendices form part of the Agreement.

Appendix 1 – Scope of Services

Appendix 2 – Personnel, Equipment, Facilities and Services of Others to be Provided by the Client

Appendix 3 – Remuneration and Payment

Appendix 4 – Programme

1. SCOPE OF SERVICES

This shall be as defined in Consultant Proposal 20877-ILF-NGR-OD-00001_Rev0 dated 6th February 2026 which apply in full and partly reproduced below:

1.0. General Outline

- The TA (Technical Advisor) shall review the projected construction programme, expenditure schedule and adequacy of the arrangements made at the site to achieve the projected construction schedule on a monthly basis;
- Perform the functions in line with TA's role as defined in the Services Schedule;
- The TA shall review, assist, advise and report to the client on the progress of work on a monthly basis, vis-à-vis program of construction and milestone dates specified in the various construction and procurement agreements related to the development of the Project;
- Engineering vetting for FEED and Detailed Design – define certain milestones for which the FEED and DED packages will be reviewed.
- Procurement Support – review of procurement packages
- The TA shall carry out spot verification of the quality of the various components of Project vis-à-vis approved specifications;
- The TA shall review quality control tests carried out;
- The TA shall review and assess variation orders;
- The TA shall review adherence to environmental regulations and report on any present / future risks that arise during Project implementation; assess compliance with HSE and environment and social management plan specified in the Facility agreement
- The TA shall bring to the notice of the client any event, which may lead to a Force Majeure event as laid down under contracts related to construction and procurements of various components of the Project, which may lead to time or cost overrun;
- The TA shall review the status of necessary approvals, permits, licenses, notifications, Project completion certificates, etc. as may be required for implementation of the Project;
- Identification and review of cost overruns (if any) and on time over runs (if any) and make recommendation.
- The TA shall from PMC's and EPC's monthly report, provide a report to the client.

1.1. SCOPE EXCLUSIONS

- Purchase / supply of any equipment;
- Any kind of procurement activities or procurement documents;
- Any costs of the Company, licensors, authorities or third parties (incl. endorsement of documentation, personnel costs and applicable fees for permits, etc.) as well as their travel expenses and allowances;
- Authority engineering;
- Costs arising from participation of a third party are excluded from our services. Such costs are based on national principles and cannot be estimated yet (e.g. certified bodies, etc.);
- Supply of any equipment (exempted from this are those facilities which are necessary for carrying out the services);
- Local fees and charges that may be associated with the execution of the work on site;
- Adaption of existing documentation in case of missing or incorrect data, conversion of the existing documentation into editable files (e.g. AutoCAD).
- Any travel costs for Company's personnel (e.g. visas, tickets, accommodation, meals, daily allowance, insurance, etc.)

2. PERSONNEL, EQUIPMENT, FACILITIES AND SERVICES OF OTHERS TO BE PROVIDED BY THE CLIENT

This shall be limited to services contained in Consultant's Proposal 20877-ILF-NGR-OD-00001_Rev0 dated 6th February 2026.

3. REMUNERATION AND PAYMENT

The contract price shall be a lump-sum fee of **USD\$151,350 (One Hundred and Fifty-One Thousand, Three Hundred and Fifty United States Dollars)** as reproduced below:

1. Labour Costs – USD 151,350
2. Non-Labour Costs (Transport and Accommodation) – to be provided by Client.

Milestone Description	Percentage of lump-sum	Amount	Payment Timeline
Mobilisation Fee	22.50%	34,054.00	10 days
Completion of FEED Review	7.50%	11,351.00	10 days
Completion of DED Review	10%	15,135.00	10 days
Submission of Monthly Report No.7	6%	9,081.00	10 days
Submission of Monthly Report No.8	6%	9,081.00	10 days
Submission of Monthly Report No.9	6%	9,081.00	10 days
Submission of Monthly Report No.10	6%	9,081.00	10 days
Submission of Monthly Report No.11	6%	9,081.00	10 days
Submission of Monthly Report No.12	6%	9,081.00	10 days
Submission of Monthly Report No.13	6%	9,081.00	10 days
Submission of Monthly Report No.14	6%	9,081.00	10 days
Submission of Monthly Report No.15	6%	9,081.00	10 days
Submission of Monthly Report No.16	6%	9,081.00	10 days

Notes

- Payment price is based on the scope of work identified in the Proposal, and is exclusive of VAT
- Payments shall be made in Naira at the prevailing NAFEX (Nigerian Foreign Exchange Market) exchange rate on the day of payment.
- The Contract Price is not inclusive of site visits, travel and accommodation expenses (Non-Labour costs). All non-labour costs shall be borne by the Client. Where the Client requires Consultant to bear the non-labour cost, Consultant shall be reimbursed.
- The non-labour costs such as travel, accommodation, messing, etc., where provided by Consultant shall be invoiced at documented cost plus 15% mark-up.

- The Price does not contain any cost for services to be provided by third party inspection services.
- ILF expects that all Regulatory permits should have been secured by Client
- ILF-Rates for 2026 are valid until December 31st, 2026.
- Payment shall be made within ten (10) calendar days after submission of each invoice.
- Regular working time in ILF Nigerian offices is 5 days per week, 8h per day.
- Regular working time onsite during site surveys is 6 days per week, 10h per day.
- The working time in Nigeria for Expat staff is limited to 6 days per week, 10h per day.
- If any special software is required, it will be acquired by ILF Engineers Nigeria at documented cost plus 15% mark-up or directly by client.

4. PROGRAMME

This shall be limited to activities as stated in Consultant's Proposal 20877-ILF-NGR-OD-00001_Rev0 dated 6th February 2026.